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Electronically FILED by Superior Court of California, County of Los Angeles 1/20/2026 4:06 PM David W. Slayton, Executive Officer/Clerk of Court, By C. Jimenez, Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **NOTICE OF RULING: SANCTIONS AWARDED IN FAVOR OF PLAINTIFF AND AGAINST DEFENDANT** **Dept.:** 91 **OSC Hearing:** January 20, 2026

TO DEFENDANTS AND TO THEIR COUNSEL OF RECORD, IF ANY:

PLEASE TAKE NOTICE that this matter was called for hearing on January 20, 2026, at 8:30 a.m. Counsel for Plaintiff, Tracey Merrell, Esq., appeared via LACourtConnect. There were no appearances by or on behalf of Defendant DERRICK L. BEVERLY. The Court awarded Plaintiff sanctions in the amount of $2,185.54 to be paid by Defendant within thirty (30) days of this Notice of the Court's Ruling. A true and correct copy of the Court's Minute Order is attached hereto as "**Exhibit A**." Plaintiff give Notice.

DATED: January 20, 2026

Respectfully submitted,

BY _____
Tracey L. Merrell, Esq.
Attorney for Plaintiff

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EXHIBIT A
JAN. 20, 2026 MINUTE ORDER

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 January 20, 2026
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 8:30 AM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Order to Show Cause Re: Sanctions Against Defendant

The matter is called for hearing.

By 9:05 AM, the Court confirmed with the Judicial Assistant that no appearances, either remote or in-person had been made by or for Defendant.

The Court and counsel for Plaintiff confer regarding the Order to Show Cause on calendar.

Counsel for Plaintiff is given the opportunity to argue.

Based upon a review of the papers submitted in support of and in opposition to the Order to Show Cause re Sanctions against Derick Beverly, and after hearing argument by Plaintiff, the Court orders as follows:

The Court orders sanctions against Defendant Derick Beverly in the sum of $2185.54 payable to Plaintiff Fox Normandie Apartment, LP by within thirty (30) days of Plaintiff giving notice of the court's ruling.

This Order to Show Cause re Sanctions is made pursuant to California Code of Civil Procedure (CCP) §128.7(b) and California Rules of Court (CRC) §§2.30 and 3.1204, for violations of local court rules. Plaintiff was invited to submit moving papers and Defendant was invited to file an opposition.

Plaintiff filed its unlawful detainer on October 13, 2022. A Default Judgment was entered against Defendant on November 29, 2022, and a Writ of Possession was issued on December 2, 2022. A lockout occurred January 26, 2023. The Defendant was locked out of the property and possession is no longer at issue.

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Defendant filed his first Appeal on September 11, 2023, close to a year after judgment was entered in this case. This appeal was dismissed for failure to file an Opening Brief after being placed in Default on January 24, 2024. Defendant filed a second appeal on June 10, 2024, ultimately dismissed for failure to procure the record and failure to cure the default on September 23, 2024. Defendant filed a 3rd appeal on November 25, 2024, appealing the same judgment rendered on November 29, 2022. According to Plaintiff, Defendant also filed five (5) separate affirmative lawsuits against the Plaintiff seeking redress from the UD lockout and the disposition of his personal property after the lockout. Defendant also filed a Civil Harassment Restraining Order, Case Number, 23STRO00528 on January 26, 2023, the day of the Sheriff lock-out but it was dismissed for failure to prosecute (tenant did not show up). Since then, Defendant has filed or noticed fifteen (15) different Ex Partes even after admonishment from the court that future defective motions may result in an OSC re Sanctions. The dates for the previous motions are as follows: September 29, 2025, October 9, 2025, October 13, 2025, October 15, 2025, Noticed for October 16, 2025, but not filed, October 17, 2025* Court Notes that future XPs deficient may result in OSC, October 21, 2025, November 4, 2025, November 13, 2025, December 1, 2025, December 3, 2025, December 11, 2025, December 12, 2025, December 19, 2025, and December 22, 2025. (See, Defendant's Memorandum of Points and Authorities, p. 3/ ll. 2-22; and Aff./Decl. of Tracey Merrell, paras. 13-17, and Exhs.)

Defendant was advised that his multiple motions lacked sufficient declaration of service, lacked a meaningful request for relief, and lacked evidentiary basis for any relief sought. The Court's Minute Orders also reminded Defendant that he failed to comply with CRC 3.1204 or the local rules in the Court's 5th Amended Standing Order dated June 1, 2021.

Further, the Plaintiff in its Opposition filed on October 17, 2025, laid out the argument that there is no legal basis the Defendant could bring before the Court in this particular case that would grant him any relief he requested. The judgment cannot be set aside since it was entered more than 6 months ago and the appellate process has more than been extinguished through 3 appeals. Therefore, Defendant, although in pro per, was on notice that his motion lacked any sufficient merit.

Defendant filed and served an untimely, unsigned opposition on the date of this hearing on January 20, 2026, claiming that he is self-represented, has been unsuccessful to obtain legal assistance, and has struggled to understand which issues to raise in this unlawful detainer case. See, Declaration of Derrick Lamont Beverly in Opposition to Order to Show Case re Sanctions ("Decl. of D. Beverly"), paras. 2-3.

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Counsel for Plaintiff claims that they have expended more than 10.75 hours on defending against these motions. The 10.75 hours only represents the time spent to request the terminating and OSC re Sanctions and the time for efforts made on and after October 17, 2025. Plaintiff has previously responded to five (5) motions noticed to Plaintiff. On and after October 17, 2025, there have been ten motions noticed, which include two filings after the court set this OSC re Sanctions. Plaintiff did not include time spent by attorneys and staff to review the court's docket to determine if the noticed ex parties were actually filed. (See, Aff./Decl. of Tracey Merrell, Esq., paras. 12-14.)

Plaintiff seeks Code of Civil Procedure section 128.7 sanctions in the amount of $4, 605.29 against Defendant Derrick L. Beverly based on the filing of the multiple frivolous motions in this case even after admonishment and warnings by the court.

Based on the foregoing, this Court awards Plaintiff sanctions for attorney's fees and costs related to Defendants previous motions on the following dates: September 29, 2025, October 9, 2025, October 13, 2025, October 15, 2025, Noticed for October 16, 2025, but not filed, October 17, 2025* Court Notes that future XPs deficient may result in OSC, October 21, 2025, November 4, 2025, November 13, 2025, December 1, 2025, December 3, 2025, December 11, 2025, December 12, 2025, December 19, 2025, and December 22, 2025.

The Court finds a reasonable sanctions award to be 10.75 hours at an hourly rate of $300.00, plus $35.54 in filing fees, for a total sanction of $2,185.54.

Sanctions are to be paid by Defendant within thirty (30) days of Plaintiff giving notice of the court's ruling.

Counsel for Plaintiff is ordered to give notice.

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PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **January 20, 2026,** I served the foregoing document described **NOTICE OF RULING: SANCTIONS AWARDED IN FAVOR OF PLAINTIFF AND AGAINST DEFENDANT** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1738 N. Las Palmas Avenue
Los Angeles, CA 90028
Email: derniercrilamont@yahoo.com;

[X] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

[ ] United States Postal Service Next Day Shipping

[ ] [BY PERSONAL SERVICE] I caused our process server to deliver such envelope by hand to the address above.

[X] [ELECTRONIC SERVICE] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: January 20, 2026



Karina Medina